

CHAPTER 49.

An Act to consolidate and amend the Law relating to the Election and Proceedings of Town Councils in Scotland.
[8th August 1900.]

WHEREAS it is expedient to consolidate and amend the law relating to the election and proceedings of town councils in Scotland :

Be it therefore enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

1. This Act may be cited as the Town Councils (Scotland) Act, 1900, and shall apply to Scotland only. Short title and extent.

2. This Act shall commence and have effect from and after the thirty-first day of December in the year one thousand nine hundred. Commencement of Act.

3. The enactments specified in the First Schedule are hereby repealed. Enactments repealed.

4. The following words and expressions in this Act shall have the meanings assigned to them, unless there be something in the subject or context repugnant to such construction ; that is to say :— Definitions.

(1.) " Acting chief magistrate " shall mean any bailie acting under section sixty-one :

(2.) " Assessor " shall mean the assessor acting under the Registration Acts :

(3.) " Burgh " shall include royal burgh, parliamentary burgh, burgh incorporated by Act of Parliament, police burgh, and any other burgh within the meaning of the Burgh Police (Scotland) Act, 1892, to which that Act applied from its commencement : 55 & 56 Vict. c. 55.

(4.) " Burgh rate " shall mean any rate or assessment imposed by the town council, but shall not include private improvement expenses :

(5.) " Common seal " shall mean the common seal of a burgh or the council thereof :

(6.) " Council " shall mean the town council :

(7.) " Electors " shall mean the persons to whom the right of electing town councillors belongs :

(8.) " Existing " shall mean existing immediately prior to the commencement of this Act :

(9.) " Magistrate " shall include lord provost, provost, and bailie :

(10.) "Municipal area" shall mean the area within the municipal boundary :

(11.) "Municipal boundary" (a) in the case of a royal burgh, parliamentary burgh, or burgh incorporated by Act of Parliament, shall mean the existing boundary for the purpose of voting for town councillors ; (b) in the case of any other burgh, shall mean the boundary of the burgh as fixed under the provisions of the Burgh Police (Scotland) Act, 1892, or of any Act thereby repealed ; and (c) in all cases shall include any extension of such boundary, and be subject to any contraction thereof effected under any Act :

55 & 56 Vict.
c. 55.

(12.) "Municipal register" shall mean the register of persons entitled to vote in the election of town councillors :

(13.) "Police burgh" shall have the meaning assigned to it in the Burgh Police (Scotland) Act, 1892 :

(14.) "Provost" shall include "lord provost" :•

(15.) "Registration Acts" shall have the same meaning as in section eight of the Representation of the People Act, 1884 :

48 & 49 Vict.
c. 3.

(16.) "Registration court" shall mean and include the registration court and the court of appeal under the Registration Acts :

(17.) "Senior bailie" or "senior magistrate" shall mean the bailie who has been longest in office since his last election as such :

(18.) "Supplementary list" shall mean the list mentioned in section twenty-seven :

(19.) "Treasurer" shall mean the salaried officer discharging treasurer's duties.

Constitution and Government of Burghs.

Corporate
name and
common seal.

5. A town council shall be elected for every burgh under the provisions of this Act and shall be designated by the corporate name of "the provost, magistrates, and councillors" of the burgh, and the common seal shall be used and adhibited under their authority and subject to their directions. The town council of a police burgh shall be a body corporate with a common seal.

Designation
of lord
provost.

6. In the case of burghs in which the provost is or may hereafter become entitled to the designation of "lord provost," the corporate designation of the town council shall be the "lord provost, magistrates, and councillors" of the burgh.

Powers of
town council.

7. Subject to the provisions of this Act, the council and magistrates of each existing burgh shall have such and the like rights, powers, authorities, and jurisdiction as were possessed by the council or commissioners and magistrates of such burgh according to the existing law Every reference in any Act of Parliament

to the commissioners of a police burgh shall in the case of a police burgh constituted after the commencement of this Act be read and construed as referring to the council thereof, and the council and magistrates of a police burgh constituted after the commencement of this Act shall have such and the like rights, powers, authorities, and jurisdictions, as shall be possessed by the council and magistrates of police burghs in Scotland under the law for the time being.

8. In any burgh the whole rights, powers, authorities, duties, liabilities, debts, officers and servants (a) of commissioners under the Burgh Police (Scotland) Act, 1892, and (b) of any body of police, gas or water commissioners, consisting exclusively of members of the town council, and (c) of the burgh local authority under the Public Health (Scotland) Act, 1897, and the whole lands, works, and other assets vested in them respectively shall, in so far as this has not already been effected, be transferred to, imposed on, and vested in the town council, and all bonds and other deeds granted by such commissioners or local authority shall be binding on the town council, and every reference in any Act of Parliament, byelaw, regulation, order, scheme, deed, or instrument, to such commissioners or local authority shall, after the commencement of this Act, be read and construed as referring to the town council or to the individual councillors as the case may be; and, except in so far as is by this Act otherwise directed, or as the town council may otherwise resolve, it shall not be necessary to hold separate or special meetings for the transaction of business arising out of the powers of police, gas, or water commissioners, or of the local authority, hereby transferred, or to keep separate minute books therefor. Provided that nothing in this section or Act contained shall be held to amalgamate any burghs or the councils thereof, or any funds or other assets separately administered, at the commencement of this Act, or to alter any rating area, or to add to or diminish or otherwise affect existing security for debt, or existing burdens on any common good, or to make competent any payment or any giving in security, or any addition to the burden on any common good, which before the commencement of this Act would have been incompetent.

Powers, &c.
of local
authorities
to be vested
in town
council.
60 & 61 Vict.
c. 38.

9. The town council may sue and be sued in their corporate name, and service on them of all legal processes and notices shall be effected by service on the town clerk. The title to all lands acquired by the town council shall be taken in their corporate name, and all deeds, contracts, and writs of importance requiring to be executed by the town council shall be granted in their corporate name, and shall be signed at a meeting of the council by the provost or other magistrate or councillor presiding and the town clerk, either with or without the common seal being exhibited. Provided that such signature shall not operate to make any person so signing personally liable for the repayment of any debt or the fulfilment of any obligation incurred by the town council.

Service of
writs, execu-
tion of deeds,
and form of
title to lands.

Number and Qualification of Councillors.

Number of
magistrates
and coun-
cillors.

10. The number of magistrates and councillors to be elected in each burgh shall, unless and until altered under this Act, remain the same as under the existing law. In burghs created after the commencement of this Act, the numbers shall be in accordance with the scale specified in Schedule II.

Alteration of
number.

11. Where the number of magistrates or councillors in any burgh under the existing law differs from the scale specified in Schedule II., or where, by alteration in population in any burgh, the number at any time hereafter comes to differ therefrom, it shall be competent for the town council, if they deem it proper, to present a petition to the sheriff praying him to exercise his powers under this section, and upon consideration of such petition, and after such advertisement and inquiry as he shall deem proper, the sheriff shall—

- (1.) Ascertain and declare, for the purposes of this Act, the population within the municipal boundary of the burgh ;
- (2.) Declare that the number of magistrates and councillors shall be increased or diminished, so as to make it conform to the scale specified in Schedule II. ;
- (3.) Determine when, and in what manner, the increase or decrease in the number of magistrates and councillors shall be effected in the burgh, and in the different wards thereof ;
- (4.) Determine when and in what order the whole magistrates and councillors, as increased or decreased in number, shall vacate office ;
- (5.) Determine all questions that may arise in connexion with such increase or decrease, and pronounce any order which he may find expedient for effecting the same, or for obviating any difficulty which may prevent the due carrying out thereof.

A copy of every determination under this section shall be forthwith communicated to the Secretary for Scotland by the town clerk of the burgh.

Persons
eligible as
councillors.

12. Any male elector in the burgh who is not subject to any of the disqualifications after-mentioned shall be eligible as a councillor.

Disqualifica-
tions of
councillors.

13. A person shall be disqualified for being nominated or elected, and for being or continuing a councillor, if and while he—

- (1.) Is not an elector, or does not appear as such on the municipal register ;
- (2.) Being a councillor, fails to attend any meetings of the council for a period of six consecutive months without leave of absence from the council ;
- (3.) Is an adjudged bankrupt within the meaning of the Bankruptcy Frauds and Disabilities (Scotland) Act, 1884, whose disqualification has not been removed in manner provided by that Act ;

- (4.) Holds any office or place of profit in the gift or disposal of the council ;
- (5.) Has, directly or indirectly by himself or his partner, any share or interest in any contract or employment with, by, or on behalf of the council, provided that a person shall not be so disqualified or be deemed to have any share or interest in such a contract or employment by reason only of his having any share or interest in—
- (a) any agreement for the loan of money, or any security for the payment of money only ;
 - (b) any newspaper in which any advertisement relating to the affairs of the burgh or council is inserted ;
 - (c) any company which contracts with the council for lighting, or supplying with water, or insuring against fire, any part of the burgh, or any property of the town council, or insuring persons in the employment of the town council against accident, or
 - (d) any railway company or any company incorporated by Act of Parliament or Royal Charter or under the Companies' Acts.

14. In the event of any disqualified person being elected a councillor, or in the event of any councillor, after being duly elected, coming under any of the disqualifications specified in section thirteen hereof, his office shall, nevertheless, not be vacated, and he shall not be prevented from voting and acting as a councillor until—

Election of
disqualified
person.

- (1.) He voluntarily resigns ; or
- (2.) His disqualification has been determined by an election court under and within the meaning of the Elections (Scotland) (Corrupt and Illegal Practices) Act, 1890, on a petition presented within the time specified by said Act, by the town council or by any four or more electors, or, in the case of disqualification alleged to exist at the time of nomination or election, by any candidate opposing him at the election, provided that the last-mentioned Act shall be held to apply to the said petition and procedure thereon, and provided that in the case of any continuing disqualification it shall be competent to present such petition at any time while the disqualification subsists ; and provided also that if in the opinion of the election court any disqualified person has in the knowledge of his disqualification made an oath or declaration de fidei, or taken his seat in the town council, it shall be in the power of the court to impose on him a fine not exceeding one hundred pounds, which fine shall be paid to the town council and applied in such manner as they may direct ; or
- (3.) A resolution declaring his office vacant has been passed by the town council at a meeting of which notice shall be given to the councillor in question and to the other councillors of the burgh at least three days before the date of such meeting ;

53 & 54 Vict.
c. 11.

55 & 56 Vict.
c. 55.

provided that the said councillors shall be entitled to appeal against any such resolution by lodging a note of appeal within fourteen days after the date of such resolution, in manner provided by section three hundred and thirty-nine of the Burgh Police (Scotland) Act, 1892; and provided further that no such appeal shall entitle the said councillor to vote and act as a councillor while the same is pending.

Councillors
not to hold
offices of profit.

15. It shall not be competent for a town council to appoint a councillor to any office or place of profit in their gift or disposal.

Councillors
not to be
liable for
debts of
burgh.

16. No councillor shall incur by his election or acceptance of office any other responsibility for the debts of the burgh, or the acts of his predecessors in office, than might have attached to him as a burgh or inhabitant independently of such election.

Division into Wards and Polling Districts.

Number of
councillors
in each ward.

17. Where a burgh is divided into wards under the provisions of this Act, the number of wards shall be so adjusted as that there shall be three, or a multiple of three, councillors for each ward.

Existing
number of
wards and
councillors to
remain until
altered.

18. In the case of any burgh where the number of wards and the number of councillors for each ward under the existing law differ from the proportion specified in the immediately preceding section, such numbers shall remain as so existing, until altered under section nineteen hereof.

Division or
re-division
into wards.

19. In the following cases, that is to say, where—

- (1) the town council of any burgh not divided into wards resolves that it is expedient that it should be so divided;
- (2) the town council of any burgh resolves that it is expedient that the number or boundaries of the wards should be altered;
- (3) in consequence of any increase or decrease of councillors it is necessary, in order to conform to the provisions of sections ten and seventeen hereof to alter the number or boundaries of wards;
- (4) any alteration of the boundary of a burgh has taken place;

the sheriff shall, on the application of the town council, if he shall consider the change necessary or expedient, and after such inquiry and advertisement, including a notice in the Edinburgh Gazette, as he shall think proper, and after hearing all parties interested—

- (1) divide or re-divide the whole burgh into wards in conformity with section seventeen or as near thereto as possible, and define the boundaries of such wards;
- (2) in every case, except in that of a burgh for the first time divided into wards, apportion the existing councillors, or any increased or decreased number of councillors, among the wards so created or altered;

- (3) determine all questions that may arise in connexion with such division, re-division, or apportionment, and pronounce any order which he may find expedient for affecting the same or for obviating any difficulty which may prevent the due carrying out thereof.

Provided that this section shall not apply to the burghs named in Schedule II. of the Burgh Police (Scotland) Act, 1892; and provided further that the sheriff, in dividing a burgh into wards or in altering the number or boundaries of wards, shall have regard to the number of electors and the value of the lands and heritages in each ward, and shall not finally make such division or alteration until the proposed division or alteration has been advertised, and objectors (if any) have been allowed an opportunity to be heard. The town council shall publish every such division or alteration in the Edinburgh Gazette, and otherwise as they think proper.

20. Any division into wards or alteration of the boundaries of wards under the provisions of this Act shall have effect for parliamentary as well as municipal purposes, provided that such division or alteration shall not affect the boundaries of any division of the burgh for the purpose of returning a member to serve for such division in Parliament.

21. In the case of a burgh for the first time divided into wards under the provisions of this Act, the whole of the council, including the provost, shall retire at the next election after such division is completed, and the new council shall be elected by the wards.

22. The town council may by resolution divide the burgh, or any ward, into two or more polling districts, and from time to time rescind such resolution or alter the number or boundaries of such polling districts, and in carrying out any election the returning officer shall appoint at least one polling place in each polling district.

Constituency.

23. The electors shall consist of—

- (1.) All persons who are entitled in respect of premises within the municipal boundary to vote in the election of a member of Parliament:
- (2.) All persons who would have been entitled in respect of premises within the municipal boundary to vote in the election of a member of Parliament, but for their removal from one part of the municipal area to another or their residing more than seven miles beyond some part of the municipal boundary:
- (3.) All peers and women who, in respect of the ownership or occupancy of premises within the municipal boundary, possess the qualifications entitling male commoners to vote in the election of a member of Parliament; provided that a wife shall not be registered or entitled to vote in respect of any premises in respect of which her husband is registered.

Qualification
of electors.

55 & 56 Vict.
c. 55.

Ward bound-
aries to
have effect
for parlia-
mentary
purposes.

First division
of burgh into
wards.

Polling
districts.

Provided that no person shall be entitled to exercise any of the rights of an elector—

- (1) unless his name appears on the municipal register;
- (2) if any disqualifying mark applicable to the municipal franchise appears against his name in the municipal register;
- (3) if and so long as he is subject to any disability under the Elections (Scotland) (Corrupt and Illegal Practices) Act, 1890, or any other Act for the time being in force relating to a parliamentary election or an election to any corporate office.

53 & 54 Vict.
c. 55.

Municipal Register.

Register in
burghs
returning
members to
Parliament.

24. In every burgh returning or contributing to return a member or members to Parliament, where the municipal and parliamentary boundaries are the same, or the municipal boundary includes any area beyond the parliamentary boundary, the municipal register shall consist of—

- (1) the register of voters for parliamentary purposes;
- (2) the supplementary list.

Register in
burghs where
parliamentary
boundary
extends
beyond
municipal
boundary.

25. In every burgh returning or contributing to return a member or members to Parliament, of which the parliamentary boundary includes any area beyond the municipal boundary, the assessor shall place a distinctive mark on the list of voters for parliamentary purposes opposite the names of all persons appearing thereon only in respect of premises within such area, and the municipal register shall consist of—

- (1) the register of voters for parliamentary purposes, subject to the deduction therefrom of all names so marked;
- (2) the supplementary list.

Register in
burghs not
returning
members to
Parliament.

26. In every burgh not returning or contributing to return a member or members to Parliament, the assessor for the county or counties or districts thereof within which the burgh is situated shall, on or before the fifteenth day of September in each year, prepare an excerpt from the list of voters for parliamentary purposes for such county, containing the names of all persons appearing thereon in respect of premises within the municipal boundary, and the municipal register shall consist of—

- (1) the said excerpt;
- (2) the supplementary list.

Supplementary
list.

27. On or before the fifteenth day of September in each year the assessor for any burgh, and for any portion of a county included within the municipal boundary of any burgh, shall prepare a separate list of the persons referred to in subsections two and three of section twenty-three, and of all persons appearing in the parliamentary list of voters in respect of premises in any area beyond the parliamentary boundary, but within the municipal boundary of any burgh, who would have been entitled to vote in the election of a member of Parliament if such area had been within the parliamentary boundary of the burgh, which list shall form the "supplementary list."

28. As affecting the right to be a burgh elector, failure to make payment of any burgh rate, or exemption from payment of any burgh rate, shall be a disqualification in the same manner as and in addition to the disqualification arising from exemption from, or failure to make payment of, poor rate in the case of a parliamentary elector.

Disqualifica-
tion from
failure to pay
burgh rates.

For the purpose of the registration of burgh electors, the provisions of the Registration Acts in regard to demanding payment of poor rate, the intimation of the names of persons exempted from or who have failed to make payment of poor rate, and the relief against erroneous or improper exemption from payment of poor rate, shall be read and construed as if they applied to the burgh rates as well as to the poor rates, and as if the collector of the burgh rates were therein named as well as and along with the collector of poor rate.

The assessor shall prefix a distinctive mark to the number or name of any parliamentary elector as appearing in the parliamentary register or list, or of any elector in the supplementary list, or in the excerpt referred to in section twenty-six, if such elector shall seem to him to be disqualified in respect of exemption from, or failure to make payment of, any burgh rate; and the forms of registers and lists, and of notices of claim and objection, and the provisions in regard to numbering on the register under the Registration Acts shall, if necessary, be varied so as to make them applicable to the registration of burgh electors as well as to the registration of parliamentary or other electors.

29. The same procedure shall be followed with reference to all the distinctive marks referred to in this Act, the excerpt referred to in section twenty-six, and the supplementary list, as is by the Registration Acts appointed to be followed with regard to the preparation, printing, publication, appeal, revision, completion, authentication, and otherwise, of the register of parliamentary voters for burghs and counties respectively.

Procedure in
Registration
Acts to
apply to
excerpt, &c.

30. Where the municipal area of any burgh not returning or contributing to return a member or members to Parliament is situated in whole or in part within the parliamentary boundaries of any other burgh, the duties of the assessor under this Act shall be performed, as regards the area or part so situated, by the assessor for such other burgh, and as regards any remaining portion of such area by the assessor for the county or counties or districts thereof within which it is situated.

Register in
burghs within
parliamentary
boundaries of
another burgh.

31. Notwithstanding anything herein contained, the assessors or others persons charged with the preparation of the municipal register, or any part thereof, shall observe the provisions of the Local Government (Scotland) Act, 1894, and Acts explaining or amending the same, with reference to the form and requisites of a municipal register, provided that the insertion in any municipal register of the name of any person qualified as a parish elector only shall not operate to constitute him a municipal elector, and the name of such person shall be indicated by a distinctive mark.

Assessors to
observe
provisions of
57 & 58 Vict.
c. 58.

Register to be evidence, and term in force.

32. The municipal register shall remain in force from the thirty-first day of October in each year until the first day of November in the following year.

Retirement of Councillors and filling up of Vacancies.

Present council to continue in office.

33. The existing town council or commissioners and magistrates of every burgh shall be the town council and magistrates under this Act, and the existing commissioners of a police burgh shall individually be the councillors thereof, but their retirement and the filling up of vacancies shall be regulated by this Act.

One-third of council to retire yearly.

34. On the first Tuesday of November in each year one-third of the whole town council in the case of a burgh not divided into wards, and one-third of the councillors for each ward in the case of a burgh divided into wards, shall retire from office. In any case where the number of councillors for any burgh or ward is not divisible by three, the number to retire shall be the nearest to one-third; provided that where under the existing practice the number to retire in any ward of a burgh is not that herein prescribed, such practice shall continue until an alteration of the number of councillors or the number or boundaries of wards is effected in such burgh in terms of this Act.

Councillors longest in office to retire.

35. The number to retire shall, without prejudice to any existing practice so long as no alteration as aforesaid is effected in terms of this Act, consist of those who have been longest in office since their last election. Where it is necessary, in order to make up the number to retire, that one or more councillors should retire out of the number of those that have been in office for an equal period, the councillor or councillors to retire shall be those who had the smallest number of votes at their previous election. In the event of there having been no contest or an equality of votes at the said previous election, the town council shall decide the order of retiral, at a meeting to be held so soon as conveniently may be after such election, and not later than the month of September immediately preceding the next ensuing election.

Casual vacancies.

36. In case of any of the following events occurring between the issue of the notice mentioned in section forty-two, and the first day of October in the following year, viz. :—

- (a.) The death of any councillor;
- (b.) The resignation of office of any councillor;
- (c.) Any councillor vacating office in consequence of coming under any of the disqualifications specified in section thirteen hereof;
- (d.) A disqualified person being elected as councillor;
- (e.) The full number of councillors not being elected at any election, the full number failing to accept office, or any councillor being elected by more than one ward;
- (f.) Any election being abortive in consequence of any error or irregularity in the proceedings;

(g.) A vacancy occurring from any cause other than those above stated, and other than retirement in ordinary rotation ;

the vacancy so occurring shall be filled up ad interim by the town council at a meeting of which the notices, stating that the matter is to be then dealt with, shall be sent out by the town clerk, within three weeks of the occurrence of such event, and which shall be held not sooner than five days, and not later than ten days, from the date of such notice. In the event of the town clerk failing to call the said meeting, or in the event of the said meeting failing so to elect, it shall be in the power of the provost, or of any councillors forming among them one-third of the whole town council, at any time thereafter, to call a meeting for the same purpose and upon the same notice. Provided that any vacancy so occurring under heading (e) or under heading (f) aforesaid may, if the town council so resolve, be filled up ad interim as soon as may be by a special election by the electors, and such election shall be held as nearly as may be under the provisions of this Act, and the returning officer at such election shall, subject to the approval of the town council, fix the date of the election, and shall fix the dates for the issue of all necessary notices, and for lodging and withdrawing nomination papers, so that the intervals between such respective dates shall be the same as in the case of ordinary elections under this Act.

37. The councillor elected ad interim under the preceding section shall hold office until the first Tuesday of November next ensuing after his election, or, in the event of his election between the issue of the notice referred to in section forty-two and the first Tuesday of November thereafter, until the first Tuesday of November in the following year, and if the councillor whose place he is elected to supply would, in ordinary course, have formed one of the councillors to retire at either of the said dates, he shall be reckoned as forming one of the councillors to retire thereat; but in any other case he shall not be so reckoned, and his place shall be filled up by the electors, in addition to the places of the councillors falling to retire.

Term of office
of interim
councillor.

38. Any councillor may resign his office at any time upon giving not less than three weeks' notice in writing to the town clerk, and the said resignation shall take effect after the expiry of the said three weeks, provided that, in the event of such councillor intimating that he desires that his resignation should take effect at the date of the next annual election, the same shall take effect at that date, irrespective of the foresaid term of notice being given, provided only that notice of resignation in writing is given to the town clerk before the issue by him of the notice provided for by section forty-two hereof.

Councillors
may resign
office.

39. In case of any of the events mentioned in section thirty-six hereof occurring between the thirtieth day of September and the issue of the notice referred to in section forty-two hereof, or of a councillor intimating his resignation to take effect at the date of the next annual election, the vacancy so caused shall not be filled

When vacancy
not to be filled
up ad interim.

up in terms of section thirty-six, but shall be filled up by the electors at the next annual election, the councillor vacating office being reckoned, or not reckoned, one of those to retire at said election, according as he would, or would not have, in ordinary course, formed one of the number falling to retire at said election.

Leave of
absence to
councillor.

40. It shall be lawful to the council to grant leave of absence to a councillor on his application, and on a reasonable cause shown, for any period not exceeding twelve months.

Procedure at Elections.

Mode of
election and
voting.

41. Where a burgh is not divided into wards, there shall be one election of councillors for the whole burgh. In other cases there shall be an election in each ward. In any case where the name of an elector appears in the municipal register as being qualified in respect of premises in more than one ward, such elector may vote in any one of said wards, but he shall not thereafter be entitled to vote at the same election in any other ward, and in the event of his doing so, or presenting himself at any polling place and asking for and receiving a ballot paper with the intention of so voting, he shall be liable to a penalty not exceeding fifty pounds, recoverable in like manner and under the same alternative as are applicable to any penalty under the Elections (Scotland) (Corrupt and Illegal Practices) Act, 1890.

53 & 54 Vict.
c. 55.

Notice of
vacancies
and dates of
nomination
and election.

42. On any day during the period between and including the eleventh and eighteenth days of October in each year the town clerk shall, by notice to be affixed to the outside wall of the town hall, or of any premises where the meetings of the town council are ordinarily held, and also to be published either by handbills posted up throughout the burgh or by insertion at least once during the said period in some newspaper or newspapers published within the burgh, if any be, or otherwise in some newspaper or newspapers circulating in the burgh, intimate (1) the names of the councillors falling to retire on the ensuing first Tuesday of November; (2) the wards by which their places fall to be supplied in the case of a burgh divided into wards; (3) the date and place for lodging and withdrawing nomination papers; (4) the date of election in the event of there being a poll; and (5) the polling places. The said notice shall be in, or as nearly as may be in, the forms respectively applicable contained in Schedule III. annexed to this Act.

Nomination of
candidates.

43. It shall not be competent to elect any person to the office of councillor unless the name of such person shall have been intimated to the town clerk in the manner herein after provided, before four of the clock afternoon of the Tuesday immediately preceding the first Tuesday of November by delivery to him, or at his office, of a nomination paper in, or as nearly as may be in, the form of Schedule IV. hereunto annexed.

Signatures to
nomination
paper.

44. The said nomination paper shall be subscribed by two electors, and the form of assent appended thereto shall be signed by

at least five other electors, and in the case of a burgh divided into wards the proposers and assenters shall all be electors of the ward to which the nomination paper applies. The form of consent to be nominated on the nomination paper shall be subscribed by the candidate or a law agent duly authorised by him.

45. Any nomination may be withdrawn by notice of withdrawal given to the town clerk before four of the clock afternoon of the Thursday immediately preceding the said first Tuesday of November, and such notice of withdrawal shall be signed by the person nominated or a law agent duly authorised by him, and by his two proposers, and shall be in, or as nearly as may be in, the form of Schedule V. of this Act, provided that no such withdrawal shall be competent where its effect would be to reduce the total number of persons nominated for the then ensuing annual election of town councillors in such burgh (or in a ward thereof where the burgh is divided into wards, and the notice applies to such ward) below the number necessary to supply the vacancies to be filled up in the burgh or ward, as the case may be, at that election.

Withdrawal
of nomination.

46. The town clerk shall, not later than the Friday immediately preceding the election, cause public notice to be given of the names of all persons so intimated to him and not withdrawn as aforesaid, and such notice shall be in, or as nearly as may be in, the form of Schedule VI. hereunto annexed, and shall be affixed and published in manner directed by section forty-two hereof. In case the number of nominations in any burgh or ward does not exceed the number of vacancies, the town clerk shall, in his notice, intimate that fact, and state that there will be no poll in such burgh or ward.

Notice of
candidates
nominated.

47. In the event of any disqualified person being nominated, the town clerk shall, if the names of such person and his proposers and assenters appear in the municipal register, receive the nomination paper and deal with it in the same manner as the nomination papers of qualified candidates, but if the name of such persons, or any of them, do not appear in the municipal register, he shall reject the nomination paper, and the same shall be null and void.

Nomination
of disqualified
person.

48. In the event of the number of persons nominated and not subsequently withdrawn not exceeding the number of vacancies in any burgh or ward of a burgh, the persons nominated shall be held to be duly elected as councillors.

Number of
candidates
not exceeding
vacancies.

49. In the event of the number of persons nominated and not subsequently withdrawn for election as councillors of any burgh or ward of a burgh exceeding the number of vacancies, the election shall be carried out by a poll which shall be taken on the first Tuesday of November, under and in conformity with the provisions of the Ballot Act, 1872, the Elections Hours of Poll Act, 1884, and any Acts extending and amending the same.

Poll in
contested
elections.

35 & 36 Vict.
c. 33.
47 & 48 Vict.
c. 31.

Returning
officer.

50. The returning officer at the said election shall be the provost of the burgh, but the acting chief magistrate shall act as returning officer in the event—

- (1) of the office of provost being at the time vacant ;
- (2) of the provost being among the number of councillors falling to retire at the election, or of his term as provost expiring, or his resigning office as at the date of the election ;
- (3) of the provost being incapacitated from acting by illness, absence, or any other cause ; or
- (4) of the provost declining or failing to perform his duties.

Town clerk
to be returning
officer in
certain cases.

51. In the event of the provost and all the bailies being amongst the number to retire, or being prevented from acting or failing to act as returning officer for any of the reasons aforesaid, the town clerk, or any person appointed by him, shall act as returning officer.

Declaration of
election.

52. The returning officer shall cause the result of the election, whether contested or uncontested, to be declared within the town hall, council chambers, or other public hall or place in the burgh, not later than four of the clock afternoon of the day after the election, and shall cause a written or printed statement thereof, signed by him, to be immediately thereafter affixed to the outside wall of the town hall, or of any premises in which the meetings of the town council are usually held.

Notice to
councillors
of their
election.

53. The town clerk shall, immediately after the declaration of the election and at latest before the expiry of the day after the election, give notice in writing to the several persons elected of their election, and require them severally to appear in the town hall, council chambers, or other public room aforesaid, on the second lawful day after such election and at such hour between ten o'clock forenoon and eight o'clock afternoon as may be fixed by said notice, when they shall severally declare, in presence of the returning officer or of the town clerk, whether they accept or decline to accept the office of councillor, and if any such person shall be found to have been elected by more than one ward in a burgh, he shall thereupon declare for which ward he intends to serve. In the event of any person elected failing to attend such meeting and declare his acceptance of office, or to intimate his acceptance of office in writing subscribed by himself or a law agent duly authorised by him, addressed to the town clerk and delivered to him or at his office before the hour of such meeting, the person so elected shall be held to have declined office, and his place shall be held to be vacant.

Returning
officer to
have casting
vote.

54. In the event of two or more candidates who cannot all be elected receiving an equal number of votes, the returning officer shall have and exercise a casting vote.

Application
to county
and parish
council
elections.
52 & 53 Vict. c. 50.
57 & 58 Vict. c. 88.

55. This Act shall be deemed to be an enactment regulating the election of town councillors referred to in the Local Government (Scotland) Act, 1889, and the Local Government (Scotland) Act, 1894, and to be an enactment by the said Acts applied to the

elections referred to in section sixteen of the last cited Act: Provided that a county council, or the returning officer at an election of county councillors, may refer to the Secretary for Scotland any question that may arise in consequence of the passing of this Act in regard to the procedure at such an election, and the determination of the Secretary for Scotland as signified by order thereon shall be final.

Election of Magistrates, &c.

56. The magistrates shall be elected by the town council from among their own number. The provost shall hold office from the date of his election as such until the expiry of three years from the first Tuesday of November immediately preceding his election, and during that period he shall (provided he continues to hold the office of provost) continue to hold office as a councillor, and be held at each of the elections occurring during his term of office to have been the shortest time in office of the councillors for the burgh or for the ward which he represents.

Election of provost and bailies.

57. The magistrates other than the provost shall be called bailies, and each bailie shall hold office from the date of his election to the date at which he falls in ordinary course to retire as a councillor.

Bailie to hold office till expiry of term as a councillor.

58. The town council shall meet at twelve of the clock noon (or at any other hour that may have been fixed by standing order) on the Friday immediately succeeding the day of each annual election, and at such meeting or any adjournment thereof fill up by election all vacancies that may then exist in the offices of provost and bailie. The returning officer, or in case of his absence one of the bailies, in the order of seniority, or failing any bailie, one of the councillors to be appointed by the meeting, shall preside at the said meeting, and shall have a casting vote in case of equality. Where more than one bailie is elected at the same time the council shall determine the order of seniority.

Meeting for electing magistrates.

59. In the event of the council failing to meet on the said day or to fill up any of the said vacancies at said meeting, or any adjournment thereof, it shall be lawful to them to fill up the said vacancies at any subsequent meeting to be duly called, but in the event of their failing to hold such meeting and make such election within the month of November in any year, it shall be lawful for the sheriff to appoint, and he shall on the application of any four electors of the burgh appoint, councillors to fill any vacancies in the said offices, or in the event of none of the councillors being willing to accept office, appoint such persons thereto from among the electors as he shall deem proper, and the persons so appointed from the electors shall be councillors of the burgh, but their term of office shall terminate at the next annual election, and they shall not be reckoned as part of the number to retire at such election, nor shall their appointment in any way interfere with the ordinary rotation of retiral of the other councillors.

Failing to hold meeting on statutory day.

First meeting
in new
burghs.

60. In the case of burghs formed after the commencement of this Act, the council first elected shall hold their first meeting at twelve of the clock noon on the first Friday after the first election, and the sheriff, or any person appointed by him, shall preside at the said meeting, and have a casting vote in case of equality, and the magistrates shall be elected at such meeting.

Acting chief
magistrate in
absence of
provost.

61. In the event of the provost being prevented at any time from fulfilling, or failing to fulfil, any of the duties of his office under this Act or the Burgh Police (Scotland) Act, 1892, on account of illness, absence from home, or from attendance at any meeting or any other cause, such duty may be performed by the senior bailie, or in the event of his being prevented from fulfilling it from any such cause by the next senior bailie, and so on through the whole number of bailies.

Appointment
of councillors
to act as
judges of
police.

62. The town council may at any time appoint any of their number who have held the office of provost, bailie, or magistrate to sit as magistrates in the police courts of the burgh for such time as they continue to be members of the town council without re-election; and during such time any person so appointed and sitting may lawfully exercise all jurisdictions, powers, and authorities competent to or exerciseable by any other magistrate of the burgh sitting in such court.

Resignation of
magistrate.

63. Any magistrate may resign office at any time on giving three weeks' notice, in writing, of his resignation to the town clerk, and his resignation shall take effect on the expiry of the said three weeks. Any magistrate resigning his office as a councillor, or ceasing for any reason to hold the office of councillor, shall be ipso facto held to vacate his office of magistrate at the same date as his office of councillor, but the resignation of office as a magistrate shall not infer resignation as a councillor. For the purposes of this section and the following section the word "magistrate" shall include any councillor appointed to the office of honorary treasurer.

Casual
vacancies
among magis-
trates.

64. In the event of any vacancy in the office of magistrate occurring from any other cause than retirement in ordinary rotation, the vacancy so occurring shall be filled up by the town council at a meeting of which notices stating that the matter is to be then dealt with shall be sent out by the town clerk within three weeks of the occurrence of such vacancy, and which shall be held not sooner than five days and not later than ten days from the date of such notice, or at any adjournment of said meeting, and the person elected shall hold office for the same period and subject to the same conditions as if he had been elected in terms of section fifty-eight hereof; provided that it shall not be competent for the council to elect to the said office any councillor elected ad interim under section thirty-six hereof, during the period of his interim appointment, and further that in the event of such a vacancy occurring in the office of provost or honorary treasurer it shall be competent to make an interim appointment to endure only until the first Tuesday of November thereafter.

65. No irregularity or nullity in the election of any councillor or magistrate shall in any case annul or affect the election of any other councillor or magistrate, and all proceedings of the town council or magistrates shall be valid, notwithstanding any vacancy in their number or the vote or presence of any councillor or magistrate against whose election or qualification any objection may exist; and the actings of a councillor or magistrate prior to his election being set aside or found null, or his disqualification determined or office declared vacant, shall be equally valid and effectual as if such councillor or magistrate had been duly elected and not been disqualified.

Irregularity or nullity not to affect election of other councillors or magistrates.

66. Where any burgh shall from any cause be at any time without a legal council, any seven electors of such burgh, or any seven persons possessing the qualifications entitling them to be placed on the municipal register, may present a petition to the sheriff requesting him to conduct an election of a council, and thereupon the sheriff shall proceed with an election in the manner, or as nearly as may be in the manner, provided by sections twenty-five and twenty-six of the Burgh Police (Scotland) Act, 1892, and by the provisions of this Act relating to the conduct of elections; provided that, where a municipal register exists in such burgh, the same shall come in place of the list of householders referred to in the first-cited section, and the electors shall be those specified in section twenty-three hereof; and, where no municipal register exists, the right of voting at said election shall be in the householders whose names are in the said list; and provided further, that the number of magistrates and council to be elected in such burgh shall be in accordance with the provisions of section ten hereof.

Election where burgh has no legal council.

67. The whole expense of making up and printing the municipal register and in connexion with the election of councillors and magistrates shall be defrayed either from the common good of the burgh, the assessment imposed or levied in the burgh under the provisions of the Registration Acts, or any assessment levied under the Burgh Police (Scotland) Act, 1892, or any local Act, all as the council may determine, and the said expenses may be divided and apportioned among the said common good and assessments as the council think proper.

Expense of making up municipal register, &c.

Minutes and Proceedings of Council.

68. Meetings of the council shall be held at such times and at such places as may be fixed by them from time to time, and as may be fixed by this or any other Act. All the councillors shall be cited to attend all meetings, such citation being given personally, or at their dwelling-houses or places of business, by notice issued by the town clerk and posted or delivered at least twenty-four hours before the time of meeting, which notice shall specify, or be accompanied by a paper of agenda specifying, so far as known to the town clerk, the business to be considered at the meeting.

Meetings of council.

69. The town clerk shall issue, without further authority, the notices for all meetings appointed to be held by statute or by

Special meetings.

the standing orders of the council. The town clerk shall, when required in writing by the provost or acting chief magistrate, or on requisition being made to him stating in writing the object of the intended meeting, and signed by not less than one-fifth of the whole members of the council, cause special meetings to be called, the notices for which shall be issued within twenty-four hours, and which shall be held within four days after receipt of such requisition.

Special
urgency.

70. In any case which appears to the provost or acting chief magistrate to demand special urgency, he may require the town clerk to call, and the town clerk shall thereupon call, a special meeting, to be held at a time less than twenty-four hours from the issue of the notices, provided that the resolutions of such meeting shall not be valid and binding on the council, unless either a majority of the whole council is present, or they are confirmed by a subsequent meeting called in manner provided by section sixty-eight hereof.

Quorum.

71. One-third of the town council shall constitute a quorum at any meeting thereof.

Adjournment.

72. The town council may adjourn any meeting to any other day, hour, and place.

Chairman of
meetings.

73. The provost or acting chief magistrate, and failing all the magistrates such one of the council as shall be chosen by the meeting, shall preside at meetings of the council, and the preses of the meeting shall have both a deliberative and, in case of equality, a casting vote, in all matters which come before it.

Committees.

74. The council shall have power to form committees of their number, either with directions to report to the council, or for carrying out the matters remitted to them, and to delegate to such committees, in whole or in part, the powers, not being powers to raise money by rate or loan, or powers the delegation whereof is expressly prohibited by any statute, competent to the council with regard to the subject which may be remitted, to name the convener and sub-convener, and to fix the numbers of such committees which shall form a quorum, and, if they see fit, to allow any committee to appoint sub-committees with powers; and the convener or sub-convener, or in his absence a member to be elected by the committee for the time, shall preside at all meetings of a committee, and shall be entitled to both a deliberative and, in case of equality, a casting vote. All meetings of committees shall be convened by the town clerk in manner aforesaid, on the instructions of the convener, or in such manner and on such instructions as the council may appoint.

Omission to
send notice
not to invali-
date proceed-
ings.

75. No act or proceeding of a town council or committee shall be invalidated in consequence of the omission to send the notice of the meeting to any councillor or of the informality of such notice, and in any case the proceedings of any informally convened meeting shall be validated by confirmation at a subsequent meeting duly called.

76. Minute books shall be kept by the town clerk containing a record of the proceedings and orders of the council and their committees. Where not otherwise provided by local Act or standing order of the council, all minutes of meetings of council, when prepared by the clerk, shall be submitted to the next ensuing meeting, and after being read and approved shall be signed by the chairman of the latter meeting. All minutes of meetings of committees may be signed by the chairman of such meeting, or by the chairman of any subsequent meeting of the same committee to which the same may be submitted for approval. Minute books.

77. The council may from time to time enact such standing orders as they may consider necessary or expedient for the regulation of their business, and repeal, alter, and amend the same. The council may by standing order provide for the closure of debate, and for the suspension by resolution of the council for the remainder of the sitting of any councillor disregarding the authority of the chairman of any meeting, or being guilty of obstructive or offensive conduct at any meeting. Standing orders.

Officers of Council.

78. The council shall from time to time appoint a fit person to be the town clerk of the burgh. In the case of any burgh where the office of town clerk is regulated by local Act, the tenure of office shall be in accordance with the provisions of such Act, and in the case of royal burghs and parliamentary burghs where the same is not so regulated, the tenure of office shall be the same as the tenure of the office of town clerk in such burghs respectively according to the existing law. In the case of all other burghs the tenure shall be during the pleasure of the town council; provided that in such case the town clerk shall not be removed from office except by a vote of not less than two-thirds of those members of the town council who shall be present at a meeting of the town council specially called for the purpose, by a circular addressed to the members of the town council not less than seven nor more than fourteen days before such meeting. In addition to any other duties that may be prescribed by or fall within the terms of his appointment, or may devolve by law upon him, the town clerk shall perform the following duties:— Appointment and duties of town clerk.

- (1.) He shall have the charge and custody of, and be responsible for, the charters, deeds, records, and documents of the burgh, and they shall be kept as the council direct;
- (2.) He shall keep the records of the proceedings of the council and their committees;
- (3.) He shall prepare and issue all such notices as the council may require to issue in the conduct of their business, or as may be required in the conduct of any election;
- (4.) He shall perform all the duties laid upon the clerk to the commissioners under the Burgh Police (Scotland) Act, 1892, or under any other Act conferring powers or imposing duties on the council.

In police burghs the existing clerk to the commissioners shall become the town clerk, and shall hold office on his existing tenure until a town clerk is appointed under this Act. During any vacancy in the office of town clerk any duty of the town clerk may be performed by any depute who may have been appointed by the last holder of the office, and all intimations required to be made to the town clerk may be made to such depute; and, failing such depute, any duty of the town clerk in relation to the issue of notices for meetings of the council or the conduct of any election may be performed by, and all such intimations may be made to, the provost or acting chief magistrate. It shall further be in the power of the town council in case of any vacancy to make an interim appointment to the office of town clerk, to endure until the appointment of a successor, and during the period of such interim appointment all things required or authorised by law to be done by or to the town clerk may be done by or to the person so appointed.

Remuneration
for additional
duties.

79. If in consequence of the passing of this Act any duties are imposed upon the town clerk in addition to those which he was bound to perform prior thereto, the council may pay to him such additional remuneration therefor as they may think proper.

Town clerk
depute.

80. The town clerk may appoint one or more persons approved of by the town council to act as his depute, and all things required or authorised by law to be done by or to the town clerk may be done by or to any depute town clerk so appointed.

Town clerk
not to practice
in police court.

81. No town clerk, depute town clerk, or partner of or person in the employment of such town clerk or depute town clerk, shall act as agent or solicitor in the trial of any offence in any police court of the burgh, and in the event of a contravention of this provision such clerk shall be thenceforth disqualified from holding any office under the town council and from being a councillor, but the disqualification may be removed on the recommendation of the town council by order under the hand of the Secretary for Scotland.

Rights of
present officers
reserved.

82. Nothing herein contained shall affect the rights of the holder as at the passing of this Act of the office of town clerk or of any other office under the town council or commissioners, and such holder if still in office at the commencement of this Act shall continue after the commencement of this Act to fulfil the duties of his office until his tenure thereof is legally terminated. For the purposes of this section the clerk to the commissioners of a police burgh shall be deemed to be the holder of the office of town clerk in such burgh.

Existing clerks
of police, &c.
may be
retained.

83. Where in any burgh the duty of clerk, treasurer, or collector to the town council, as commissioners under the Burgh Police (Scotland) Act, 1892, or any other local or general Act conferring powers or imposing duties on the council, is performed, immediately prior to the commencement of this Act, by an officer other than the town clerk, treasurer, or chamberlain, the town council may, notwithstanding anything herein contained, so long as they shall

consider it expedient to do so, continue him in his post, and so long as the town council shall resolve so to continue him, the duties in relation to the Burgh Police Act, or such other Act as aforesaid, imposed upon the town clerk, treasurer, or collector, shall continue to be performed by the said officer, who shall in relation to such duties possess all the powers hereby conferred upon the town clerk, treasurer or collector, and the council may pay to such officer such remuneration as they may think proper.

84. The council shall from time to time appoint fit persons to be the treasurer and the collector of the burgh, to act during their pleasure, and such treasurer and collector, before entering upon office, shall respectively grant bond with sufficient surety to the council for their intromissions, and for the just and faithful execution of their office, to such an amount as the council shall think reasonable, and any treasurer or collector who may be convicted of wilfully secreting or not accounting to the council for any sum of money received by him, as treasurer or collector, shall forfeit triple the amount thereof to the council, besides being liable to be punished according to law, and to be deprived of his office. The town council may confer the title of chamberlain, or such other title as they may resolve upon the said treasurer. Treasurer and collector.

85. The treasurer or collector shall be obliged to lodge all money received by him in a chartered or other bank, or in one of the branches of such bank in the burgh, to be fixed by the council, upon an account to be opened in the name of the council in their corporate name, and to be operated upon by the treasurer or collector respectively, with the counter signature of one or more councillors as the council shall from time to time appoint. The council may from time to time make regulations for the manner of keeping or operating upon such bank accounts as they think proper. Treasurer or collector to lodge money in bank.

86. The council may appoint the same person to be both treasurer and collector, but (saving the cases of persons appointed to and exercising the joint offices prior to the passing of this Act, and saving also as after mentioned) shall not appoint the town clerk, or his partner, or any person in the service or employ of such clerk or of his partner, to be the treasurer, or appoint the treasurer or collector, or his partner, or any person in the service or employ of such treasurer or collector or his partner, to be town clerk, and any appointment made in contravention of this section shall be null and void. Clerk and treasurer not to be same person.

87. In the case of any burgh having not more than five thousand inhabitants at the date of the census immediately preceding any election of town clerk or treasurer or collector, it shall be lawful for the town council at such election to appoint the town clerk to be treasurer or collector during the pleasure of the council. Town clerk may be treasurer in burghs of 5,000.

88. In case any treasurer or collector shall become insolvent, and the sums chargeable against him shall not have been paid by his cautioner or sureties, the amount deficient shall be chargeable against the common good of the burgh, or against such of the Defalcations of treasurer or collector, how to be chargeable.

assessments levied or funds managed by the council as the council may determine.

Other officers.

89. The council shall from time to time appoint such other salaried officers as are directed by common law or statute to be appointed, or as the council think necessary. The council may, in the case of all officers appointed by them, require such officer to give such security as they think proper for the due execution of his office. The council shall allow to their officers such remuneration as they think reasonable.

Honorary treasurer.

90. Where under statute or the set or usage of any burgh it has, prior to the passing of this Act, been the custom to appoint a councillor to the office of honorary treasurer, the council may continue to make such an appointment, and the honorary treasurer so appointed may exercise, subject to the direction of the council, a general superintendence over the actings of the salaried treasurer appointed under this Act, and may be appointed convener of any finance committee appointed by the council. The councillor so appointed shall, if the council so decide, have the same right of holding office for three years, and of being held to have been the shortest time in office as a councillor, as is herein-before conferred on the provost.

Accounts and Corporate Property.

Books of account.

91. Accounts of all property, heritable and movable, vested in the council, showing the nature of such property, and of all rates, or assessments levied, and of all money received and expended by or on account of the council, shall be kept in books by the treasurer.

Yearly account to be made out.

92. The council shall yearly cause to be made out a just and accurate account of all the moneys received and expended by them on account of the common good and revenue of the burgh, and on account of any rates or assessments levied or collected, or money realised, received, or borrowed by them under the Burgh Police (Scotland) Act, 1892, or any other Act under which they are authorised to levy assessments or uplift or borrow money, for the year ending on the fifteenth day of May immediately preceding, showing from what sources such moneys have been received, and to what purposes the same have been laid out and applied.

Account to exhibit a complete state of affairs.

93. The said account shall be so made out as to exhibit a complete state, showing the common good and all other assets, and also the liabilities of the burgh, and the action taken during the year with a view to the extinction of such liabilities by way of payment of instalments or annuities, contributions to sinking fund, or otherwise, classed under different heads; also the amount of each branch of revenue and assessment, distinguishing how much thereof shall have been received and how much thereof shall be in arrear or remaining unpaid at the date of such account; also the amount of all sums received or loans contracted for, annuities granted, and sums received in consideration thereof, or on sale or alienation of property, distinguishing the same from the ordinary revenue, and also showing every sum paid and every

sum remaining unpaid for or by reason of any expense incurred during the year for which such account shall be so made out, distinguishing the fixed or ordinary from the casual or incidental expenditure, and also showing all cautionary obligations, positive or conditional, incurred by or on account of the burgh, distinguishing such as shall have been incurred during the year.

94. The Secretary for Scotland shall annually appoint an auditor for the purpose of auditing the accounts of the burgh, and in case of dispute shall on the application of either party fix the fee to be paid to such auditor, and in case the office of such auditor shall, before such accounts are audited by him, become vacant by death, or from any other cause, shall subject to the like incidents appoint an auditor to supply such vacancy.

Appointment
of auditor.

95. The council shall deliver to the auditor, as soon as may be after the said fifteenth day of May annually, all the accounts, together with their books and vouchers; and it shall be the duty of the auditor to audit such accounts, and either make a special report thereon in any case where it appears to him expedient so to do or simply confirm the same, provided that the auditor shall make a special report in every case where he is of opinion that any statutory or other requirement with respect to the repayment or extinction of debt has not been observed, or that any debt is not being duly repaid.

Accounts,
&c. to be
delivered to
auditor.

96. The yearly account, as the same shall have been audited, shall be laid before a meeting of council, to be held not later than the month of September in each year, and the auditor's confirmation or special report shall be read at such meeting and the account shall, if and as approved by the council, be signed by the preses of such meeting and the town clerk, and shall be deposited with the town clerk, and the council shall forthwith cause such account or an abstract thereof, together with the auditor's confirmation or special report thereon, to be printed, and shall permit any person assessed, or any elector, to inspect and examine such account at all reasonable times, without payment of any fee or reward for such inspection, and shall forthwith transmit to the Secretary for Scotland, and shall also on the demand of any person assessed or elector, on payment of such sum as the council with the approval of the Secretary for Scotland may fix, deliver to such person or elector a copy of such account or abstract and report as printed.

Account to be
laid before
meeting of
council.

The Secretary for Scotland is hereby empowered to prescribe a form of abstract of the said account, and if and after he has prescribed such form an abstract of the said account shall be made and printed in the prescribed form and shall come in place of the abstract in this section mentioned, and if the Secretary for Scotland so determine shall also come in place of and render unnecessary a return of the receipts and expenditure of the town council in pursuance of the Local Taxation Returns (Scotland) Act, 1881.

44 & 45 Vict.
c. 6.

Any ratepayer or elector who shall be dissatisfied with any such account or any item therein may complain against the same by petition to the sheriff specifying the grounds of objection and the sheriff shall hear and determine the matter of complaint, and his

decision shall be subject to the same right of appeal as in ordinary actions in the sheriff court. Provided always that it shall not be competent to petition the sheriff after the lapse of three months from the date of the meeting aforesaid.

Accounts of
charity under
management
of town
council.

97. Where the town council or magistrates or any number of them are the sole trustees for any charity, foundation or mortification, then, and in every such case, accounts relative to the same shall be kept distinct from the accounts relative to the common good, revenues, and assessments of the burgh, and the council shall yearly cause to be made out an account relative to such charity, foundation or mortification, and all the provisions herein contained relative to the preparation, submission to the council, and audit of the accounts relating to the common good and assessments of the burgh, shall be applicable to the accounts of the said charity, foundation or mortification.

All alienations
of heritable
property to be
by public
 roup.

98. The town council shall cause all feus, alienations, or tacks for more than five years, of any heritable property of the burgh, or vested in the council, so far as forming part of the common good, to proceed by public roup, of which public notice shall be given by advertisement published once weekly for at least three weeks immediately preceding the day of roup, in a newspaper or newspapers circulating in the burgh, and all such feus, alienations, leases, or tacks made otherwise than as herein directed shall be void and null. A certificate by the publisher of such newspaper of the appearing of the said advertisement shall be sufficient evidence of such publication and of the date thereof.

No debt to
be contracted,
unless by
resolution of
council or
committee.

99. It shall not be lawful for the council of any burgh to contract any debt, grant any obligation, make any agreement, or enter into any engagement, which shall have the effect of binding them or their successors in office, unless a resolution of council or of a committee duly authorised to pass such resolution shall have been previously made in that behalf, or unless the same has been authorised by some person authorised by standing order of the council to do so, and any such contract, obligation, agreement, or engagement, made or entered into without such authority shall be void and null as against the common good, property, and assessments of the burgh or the succeeding council thereof, without prejudice nevertheless to the personal liability and responsibility of the persons by whom the same may have been made or entered into.

Miscellaneous.

Election of
trustees under
certain Acts,
charters, &c.

100. Where any trust, management, or direction is, by the terms of any public or local Act, or of any charter or deed of foundation or other deed, conferred or imposed on any members of a council either under the denomination of old provost, old bailie, old dean of guild, or of merchants or trades bailies, or merchants or trades councillors respectively, the town council shall, from time to time, nominate and elect from their own body such a number of persons to be such trustees, managers, or directors, as are by such Acts, charters, or deeds appointed to those offices under the said denominations, and the whole powers and functions

belonging to the said offices of trustees, managers, or directors, shall belong to and be as fully vested in the persons so elected as if they had possessed the denominations used in the said Acts, charters, or deeds.

101. Nothing herein contained shall be held or construed to impair the right of any craft, trade, convenery of trades, or guildry, or merchants house or trades house, or other such corporation, severally to elect their own deacons or deacon convener, or dean of guild or directors, or other lawful officers, for the management of the affairs of such craft, trades, conveneries of trades, or guildries, merchants or trades houses, or other such corporations; but, on the contrary, the said several bodies shall be in all cases entitled to the free election, in such form as shall be regulated by them, of the said several office bearers, and other necessary officers for the management of their affairs, without any interference or control whatsoever on the part of the town council or any member thereof.

Right of
election of
deacon
convener, &c.
reserved.

102. The persons elected, or to be elected, to the offices of dean of guild and deacon convener or convener of trades, by the convenery and guild brethren respectively in the city of Edinburgh, and to the offices of dean of guild and deacon convener by the merchants house and trades house respectively in the city of Glasgow, shall, in virtue of their said elections by the said guild brethren, convenery, merchants house, and trades house respectively, be constituent members of the town councils of the said cities, and shall enjoy all the powers and perform all the functions now enjoyed or performed by such office bearers in these cities; and in like manner the persons elected, or to be elected, to the offices of deans of guild by the several guildries of the cities of Aberdeen, Dundee, and Perth shall, in virtue of such their elections, be constituent members of the town councils of the said cities respectively, and shall as such enjoy all the powers and perform all the functions now exercised or enjoyed by the existing deans of guild in the said cities respectively; but the provisions hereof as to qualification, retirement, and election of councillors shall not be applicable to such persons, and in computing the number of councillors, or the number to retire, the said persons shall not be reckoned as councillors. Nothing in this Act shall affect the existing rights, powers, and jurisdiction of any dean of guild, or dean of guild court in any burgh, and in any burgh where under the existing law it has been the custom of the town council to appoint a councillor to perform the duties and functions formerly performed by the dean of guild in such council, or in any dean of guild court of such burgh, the council may continue to make such an appointment, and the whole provisions of this Act relating to the appointment, tenure, vacating office, and supply of vacancies applicable to a bailie shall be applicable to the councillor so appointed.

Dean of
guild and
deacon
convener, &c.
of certain
burghs to be
members of
council, &c.

103. Notwithstanding anything herein contained, the councils of the burghs of Anstruther Wester, Earlsferry, Lauder, and North Berwick, shall, unless and until altered under section eleven hereof,

Councils of
Anstruther
Wester,
Earlsferry

Lauder, and
North
Berwick.

consist of nine members, including the magistrates, and the magistrates of said burghs shall, unless and until altered as aforesaid, consist of a provost and two bailies.

Trusts vested
in deacons,
&c.

104. Where any trust, management, or direction of any charitable or other institutions is vested in any number of deacons, or in a deacon convener, or convener of trades, or in any dean of guild, or other office bearers elected, or hereafter to be elected, by the several crafts, trades, guildries, or merchants or trades houses, then and in all such cases the persons so elected as such deacons, conveners, deans of guild, or other officers, shall always be and continue trustees and managers of such charities or institutions, whether such persons shall hereafter be members of council or not; and the town councils shall in no such case have power to elect from their own body any other trustees or managers in place of such deacons, conveners, deans of guild, or other officers: Provided always, that in any burgh in which trades councillors or merchant councillors are or may be ex-officio trustees or directors of any such institutions or charities, the conveyer or trades house and the guildry or merchants house in such burghs shall elect an equal number from their own bodies respectively to be such trustees or directors, anything herein contained to the contrary notwithstanding.

Admission of
burgesses by
minute of
council.

105. It shall be lawful for the magistrates and council of any royal burgh, and they are hereby authorised and empowered, to admit any elector in the burgh to the status of a burghess thereof, and that by a minute of the council thereof, and on payment of such entry money, not exceeding in any case the sum of one pound, as the council of the burgh may from time to time fix, which entry money shall be accounted part of the common good of the burgh and be applied accordingly: Provided always that such admission by minute of council shall not, per se, be held to give or imply any right or title to or interest in the properties, funds, or revenues of any of the guilds, crafts, or incorporations of the burgh, or any mortification or benefactions for behoof of the burgesses of such guilds, crafts, or incorporations, or of their families, or any right of management thereof, or any membership in any of the said guilds, crafts, or incorporations.

Qualification
of burgesses.

106. Every person in Scotland of full age, liable to be rated for the relief of the poor, who at the term of Whitsunday one thousand nine hundred, or any succeeding term of Whitsunday in any year, shall have occupied any house, warehouse, counting-house, shop, or other building, within any burgh in which there are burgesses, during the whole of that year and the whole of the two preceding years, and who, during the time of such occupation, shall have been an inhabitant householder within the said burgh, and who shall have been rated in respect of such premises so occupied within the burgh to all rates made for relief of the poor of the parish wherein such premises are situated during the time of his occupation as aforesaid, and who shall have paid, on or before the last term of Whitsunday as aforesaid, all such rates,

together with all burgh rates, if any, as shall have become payable in respect of such premises, except such as shall have become payable within six calendar months next before the said last term of Whitsunday, shall be, subject to the conditions herein-after contained, a burgess of such burgh, so long as such person shall occupy premises, and be rated and pay rates in manner aforesaid within the same: Provided that the premises in respect of the occupation of which any person shall have been so rated need not be the same premises or in the same parish, but may be different premises in the same parish or different parishes: Provided also that no person being an alien, and no person who, within twelve calendar months next before the last term of Whitsunday, shall have received parochial relief or any pension or charitable allowance from the town council revenues of such burgh, or from any corporate body within the same, shall by virtue of this Act be held to be a burgess of such burgh so long as he continues to receive such pension or charitable allowance: Provided further that no person shall be disqualified from being a burgess as aforesaid by reason that any child of such person shall have been admitted and taught within any endowed school.

107. Nothing herein contained shall interfere with any existing law or legal usage by which burgesses are created or admitted in any burgh, or give or imply any right or title to or interest in any merchants house or trades house, or any patrimonial lands, common or other properties, funds, or revenues, of any of the guilds, burgesses of guild, crafts, or incorporations of the burgh, or to or in any burgess acres, or any grazing rights connected therewith, or any mortifications or benefactions for behoof of the members of such guild, burgesses of guilds, crafts, or incorporations, or of their families, or any right or management thereof, or any membership in any of the said guilds, burgesses of guild, crafts, or incorporations, or of such burgess acres: Provided that the widows and children of burgesses admitted under this Act, or any of the Acts hereby repealed, and who may die during the period of their burgess-ship, shall have and enjoy all the rights and privileges which the widows and children of burgesses created or admitted in any other manner now enjoy by the law and practice of Scotland.

Saving of existing laws and usages as to admission of burgesses.

108. In the event of the magistrates and council of any burgh entitled to do so resolving, in terms of the Act passed in the thirty-third and thirty-fourth years of the reign of Her Majesty, chapter forty-two, to abolish any petty customs and duties, and in lieu thereof to levy, by way of assessment, a rate or rates, not exceeding the rate or rates mentioned in the said Act, calculated to yield in the whole in the year an amount equal to the nett yearly amount of such petty customs, it shall be lawful to calculate such nett yearly amount with reference to the produce of the petty customs or duties levied in such burgh in the year ending Whitsunday one thousand eight hundred and seventy-six.

Rate in lieu of petty customs.

Power to
certain burghs
to declare
sections of Act
inapplicable
to them.

109. Notwithstanding anything in this Act contained it shall be in the power of the town council of any of the burghs mentioned in Schedule II. of the Burgh Police (Scotland) Act, 1892, by a resolution passed at any time within twelve months after the passing of this Act, to declare that any sections or subsections of this Act relating to the constitution and government of burghs, the minutes and proceedings of council, the officers of council, and accounts and corporate property, specified in such resolution, shall not be applicable to such burgh, and that in lieu thereof the corresponding sections or subsections (if any) of an Act or Acts applying to such burgh repealed by this Act, which sections or subsections shall be specified in the resolution, shall, notwithstanding such repeal, remain in force or revive within the burgh. Any resolution passed under this section shall be transmitted to the Secretary for Scotland, and published in the Edinburgh Gazette, and from and after such publication the resolution shall have effect as if it were enacted in this Act.

Boundaries
of royal burghs
for purposes
of the
Valuation
Acts.
17 & 18 Vict.
c. 91.

110. Where the boundaries of a royal burgh which does not return, or contribute to return, a member or members to Parliament, as determined under and for the purposes of the Lands Valuation (Scotland) Act, 1854, and any Acts amending the same, differ from the boundaries thereof for police purposes, the boundaries of the said royal burgh for police purposes shall, on and after the fifteenth day of May one thousand nine hundred and one, be also the boundaries thereof under and for the purposes of the Valuation Acts.

Notice to
Board of
Agriculture.
55 & 56 Vict.
c. 55.

111. Where the boundary of a burgh or of a ward is fixed for the first time or altered under the provisions of the Burgh Police (Scotland) Act, 1892, or this or any other Act, the council shall, as soon as may be after the boundary is fixed or altered, obtain and send to the Board of Agriculture copies of the deliverance or order fixing or altering the boundary, and of any plan therein referred to, certified by the sheriff clerk or sheriff clerk depute.

Special
provisions for
city and
royal burgh of
Edinburgh.

112. With regard to the city and royal burgh of Edinburgh the following provision shall have effect :—

Until such a re-arrangement of the wards is effected as shall make the boundary of the wards for parliamentary purposes coincide with those for municipal purposes, the operation of section twenty-four shall be suspended and a separate municipal register of voters shall be made up by the assessor, with regard to which the same procedure shall be followed as is by the Registration Acts appointed to be followed with regard to the preparation, printing, publication, appeal, revision, completion, authentication, and otherwise of the register of parliamentary voters for burghs, and the distinctive marks by this Act directed to be placed on the parliamentary register shall be placed upon the said municipal register.

Application to
court in
cases of
difficulty.

113. Wherever it has, from a failure to observe any of the provisions of this Act or any other Act, or from any other cause, become impossible to proceed with the execution of this Act or any

part thereof, or wherever difficulty or dubiety exists as to the procedure to be followed in any case, or where any case arises in connexion with the election of councillors or magistrates not provided for by this Act, it shall be lawful for the town council, or any seven electors or householders within the burgh, or for the returning officer at any election, or the town clerk, to present a petition in manner provided by section seventeen of the Burgh Police (Scotland) Act, 1892, and the same procedure shall follow upon said petition, and the court to whom the same is presented shall have the same powers, as is provided by the said section in regard to applications presented thereunder.

114. Where any application under this Act falling to be made to the sheriff is dealt with in the first instance by the sheriff-substitute, there shall be an appeal to the sheriff, but, subject thereto, the decision of the sheriff or sheriff-substitute shall in all cases (except where otherwise provided) be final. Where a burgh is situated in more counties than one, any application under this Act shall be presented to the sheriffs of the counties in which the burgh is situated, and shall be dealt with in manner provided by the Burgh Police (Scotland) Act, 1892, with regard to applications under that Act presented to two or more sheriffs, and in the event of the sheriffs differing in opinion the matter shall be dealt with in manner provided by that Act. All deliverances pronounced by any sheriff or sheriffs or the Court of Session under this Act shall be recorded in the sheriff court books of the county, and in the books, if any, of the burgh to which they apply. Applications to the sheriff.

115. No misnomer, inaccurate description of any person or place, omission, mistake, or informality, in any writing made in, or as nearly as may be in, the form of any schedule to this Act annexed, or in any list, register, or notice, or other writing, made under the authority of this Act, shall in any way prevent or abridge the operation of this Act, or the validity of any election or other proceeding thereunder, provided that any person or place mentioned shall be so designated as to be commonly understood, and such omission, mistake, or informality, be not such as to defeat the object of such writing, or cause substantial injustice to any person affected thereby. Misnomers, &c. not to affect validity of proceedings.

116. Nothing in this Act contained shall affect the rights, powers, or authorities of any county council or district committee of a county council or local authority of a county or a district of a county under the Public Health (Scotland) Act, 1897; or prejudice the provisions of subsections one and two of section eighty-one of the Local Government (Scotland) Act, 1889, as amended by section forty-four of the Local Government (Scotland) Act, 1894. Saving for rights of county authorities. 60 & 61 Vict. c. 38.

117. Nothing in this Act contained shall supersede, prejudice, or affect the provisions of any local Act applicable to any burgh, or the forms of prosecutions and procedure in use therein under such Act. Saving of local Acts, &c.

SCHEDULES to which this Act refers.

Section 3.

SCHEDULE I.

ENACTMENTS REPEALED.

Session and Chapter.	Title of Act.	Extent of Repeal.
3 Geo. 4. c. 91.	An Act for regulating the mode of accounting for the common good and revenues of the Royal burghs of Scotland.	The whole Act.
3 & 4 Will. 4. c. 76.	An Act to alter and amend the laws for the election of magistrates and councils of the Royal burghs in Scotland.	The whole Act.
3 & 4 Will. 4. c. 77.	An Act to provide for the appointment and election of magistrates and councillors for the several burghs and towns of Scotland which are now returning or contributing to return members to Parliament, and are not Royal burghs.	The whole Act.
15 & 16 Vict. c. 32.	An Act to alter and amend certain provisions in the laws relating to the number and election of magistrates and councillors in the burghs in Scotland.	The whole Act.
19 & 20 Vict. c. 58.	An Act to amend the law for the registration of persons entitled to vote in the election of members to serve in Parliament for burghs in Scotland.	Section 32.
23 & 24 Vict. c. 47.	An Act to amend the law relative to the legal qualifications of councillors, and the admission of burgesses in Royal burghs in Scotland.	The whole Act.
24 & 25 Vict. c. 36.	An Act to amend the Boundaries of Burghs Extension (Scotland) Act.	The whole Act.
31 & 32 Vict. c. 108.	The Municipal Elections Amendment (Scotland) Act, 1868.	The whole Act.
33 & 34 Vict. c. 92.	The Municipal Elections Amendment (Scotland) Act, 1870.	The whole Act.

Session and Chapter.	Title of Act.	Extent of Repeal.
35 & 36 Vict. c. 33.	The Ballot Act, 1872 - -	Subsection (2) of section twenty-two.
39 & 40 Vict. c. 12.	An Act to assimilate the law of Scotland to that of England respecting the creation of burgesses.	The whole Act.
39 & 40 Vict. c. 25.	An Act to amend the law of Scotland in regard to the division of burghs into wards.	The whole Act.
44 & 45 Vict. c. 13.	The Municipal Elections Amendment (Scotland) Act, 1881.	The whole Act.
48 & 49 Vict. c. 9.	The Municipal Voters Relief Act, 1885.	The whole Act as regards Scotland.
55 & 56 Vict. c. 55.	The Burgh Police (Scotland) Act, 1892.	Section eleven, from the words "and where not divided," to the word "rearrangement," and the words "and wards" wherever they occur; section thirteen, the words "or of the wards of a burgh"; section fourteen; section twenty-four; section twenty-six, the word "herein-after" where first occurring, and from the words "and he shall preside" to end of section; sections twenty-eight to forty-one inclusive; section forty-four, sections fifty to fifty-four inclusive; section fifty-five, subsection (2); sections sixty-one to seventy-two inclusive; Schedule IX., Schedule X.
57 & 58 Vict. c. 18.	The Burgh Police (Scotland) Act, 1892, Amendment Act, 1894.	The whole Act.
57 & 58 Vict. c. 58.	The Local Government (Scotland) Act, 1894.	The words "or municipal" and "municipal" where they occur in section eleven; subsection six of section thirteen; and in section fifteen, the words "and burgh commissioners for town council or town councillors."

Sections 10, 11.

SCHEDULE II.

NUMBER OF MAGISTRATES AND COUNCILLORS.

Population of Burgh.	Number of Councillors, including Magistrates.	Number of Magistrates, including Provost.
Under 10,000 - - - -	9	3
Between 10,000 and 20,000 - -	12	5
Between 20,000 and 50,000 - -	15	5
Between 50,000 and 100,000 - -	18	7
Between 100,000 and 200,000 - -	36	9
Between 200,000 and 500,000 - -	75	12
500,000 and upwards - - -	90	15

The sheriff may, where the population is less than 20,000, fix the number of councillors at 12 or 15, and where the population is between 50,000 and 100,000, at 21 or 24, if he thinks fit so to do.

Section 42.

SCHEDULE III.

FORMS OF NOTICE OF ELECTION.

(1.) *Form applicable to a Burgh not divided into Wards.*

Burgh of
Municipal election, 19 .

In terms of the Town Councils (Scotland) Act, 1900, notice is hereby given

1. That the annual election of councillors to supply the vacant places in the town council of the burgh, will, in the event of there being a poll, take place on Tuesday the day of November next, between the hours of eight o'clock forenoon and eight o'clock afternoon, at the places following, viz. :—

[*Here specify the polling place or places.*]

to elect

councillors in the place of

[*Here mention names of councillors retiring, and cause of retiral, whether by rotation or as having been elected ad interim, or otherwise.*]

2. That no person can be elected to the office of councillor whose name is not intimated to me before four o'clock afternoon of Tuesday the day of October current; that all withdrawals of persons nominated must be intimated to me before four o'clock afternoon on Thursday the day of October current, and that all intimations must be delivered at my office situated at [*here specify address of office*].

3. That every person proposed for election as a councillor must be nominated by a separate nomination paper in the terms of Schedule IV. of the said Act, and every such nomination paper must be signed by two

electors whose names appear on the municipal register, and must contain an assent thereto, signed by five such electors, and the written consent of the nominee, or a law agent duly authorised by him.

4. That in the event of the number of persons so nominated, and not subsequently withdrawn, not exceeding the number of vacancies, there will be no poll, and the persons so nominated will, on the day appointed for declaring the election, be declared duly elected as councillors.

5. That copies of the municipal register and forms of nomination and withdrawal papers may be had at my office above mentioned, on or after the 21st October current.

A. B., Town Clerk.

[Date.]

(2.) *Form applicable to a Burgh divided into Wards.*

Burgh of

Municipal election, 19 . . .

In terms of the Town Councils (Scotland) Act, 1900, notice is hereby given

1. That the annual election of councillors to supply the vacant places in the town council of the burgh will, in the event of there being a poll, take place on Tuesday, the day of November next, between the hours of eight o'clock forenoon and eight o'clock afternoon, at the places after-mentioned.

First ward.

Polling place—[*here specify polling place or places*].

To elect councillors in place of

[*Here mention names of councillors retiring, and cause of retiral, whether by rotation or as having been elected ad interim, or otherwise.*]

Second ward.

[*As above, and so on through the whole number of wards.*]

2. That no person can be elected to the office of councillor whose name is not intimated to me before four o'clock afternoon of Tuesday the day of October current; that all withdrawals of persons nominated must be intimated to me before four o'clock afternoon of Thursday the day of October current, and that all intimations must be delivered at my office situated at [*here specify address of office*].

3. That every person proposed for election as a councillor must be nominated by a separate nomination paper in the terms of Schedule IV. of the said Act, and every such nomination paper must be signed by two electors of the ward to which the same applies, whose names appear on the municipal register, and must contain an assent thereto signed by five such electors, and the written consent of the nominee or a law agent duly authorised by him.

4. That in the event of the number of persons so nominated in any of the wards, and not subsequently withdrawn, not exceeding the number of vacancies, there will be no poll in such ward, and the persons so nominated will, on the day appointed for declaring the election, be declared duly elected as councillors.

5. That copies of the municipal register and forms of nomination and withdrawal papers may be had at my office above mentioned, on or after the 21st October current.

A. B., Town Clerk.

[Date.]

Section 43.

SCHEDULE IV.

FORM OF NOMINATION PAPER AND ASSENT.

We, *A. B.* [*here insert name and place of abode and register number as in the municipal register*] and *C. D.* [*here insert name and place of abode and register number as aforesaid*], hereby propose and nominate *E. F.* [*here insert name and place of abode and register number as aforesaid*] for election as a councillor [*when the burgh is divided into wards add here,—for the* ward,—*specifying ward*] at the next ensuing municipal election in the burgh of [*specify burgh*].

Given under our hand this [*insert date*].

A. B.
C. D.

We, the undersigned, being registered municipal electors of the burgh of [*when the burgh is divided into wards add here—for the* ward,—*specifying ward*], do hereby assent to the nomination of the said *E. F.* as councillor, as above mentioned.

<i>G. H.</i> , of	} [<i>Insert place of abode and register number as in municipal register.</i>]
<i>I. J.</i> , of	
<i>K. L.</i> , of	
<i>M. N.</i> , of	
<i>O. P.</i> , of	

I, the nominee for election, consent.

E. F.

To the town clerk of

Section 45.

SCHEDULE V.

FORM OF WITHDRAWAL PAPER.

The nomination of *E. F.* [*here insert name and place of abode and register number of candidate as in the municipal register*] for election as a councillor [*when the burgh is divided into wards add here—for* ward—*specifying ward*] at the next ensuing municipal election in the burgh of [*specifying burgh*] is hereby withdrawn.

Given under our hand, this [*insert date*].

To the town clerk of

SCHEDULE VI.

Section 46.

FORM OF NOTICE OF CANDIDATES NOMINATED.

Burgh of •

In terms of the Town Councils (Scotland) Act, 1900, I hereby give notice that I have received intimation that the following persons are proposed for election as councillors in this burgh at the municipal election on Tuesday next.

Ward.	Name of Candidate.	Place of Abode of Candidate.	Names of Proposers.	Place of Abode of Proposers.
I.				
II.				
III.				

[In case of the number of persons nominated not exceeding the vacancies in any burgh or ward] And I further give notice that in respect the number of persons proposed and not withdrawn for election as councillors in the burgh [or, when the burgh is divided into wards, in the [specify number] ward] does not exceed the number of vacancies to be supplied [when the burgh is divided into wards, add in the said ward], there will be no poll [when the burgh is divided into wards, add in that ward], and the persons so proposed will, on the day appointed for declaring the election, be declared to be elected councillors of the burgh.

A. B., Town Clerk.
[Date.]